

ORDER SHEET

**IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN.
JUDICIAL DEPARTMENT**

Crl. Misc. No.6620-B/2014

Muhammad Nawaz Versus. The State etc.

Sr.No.of Order/ Proceeding.	Date of Order/ Proceeding.	Order with signatures of Judge and that of parties or counsel, where necessary.
-----------------------------------	---------------------------------------	--

08.01.2015 Mr. Ghulam Qadir Khan Chandia, Advocate for the
petitioner.
Malik Riaz Ahmed Saghla, Deputy Prosecutor
General alongwith Mustafa ASI.

Through this Crl. Misc., petitioner seeks post-
arrest bail in case FIR No.392/2014 dated 04.10.2014
registered under section 489-F PPC at Police Station
Qureshi, District Muzaffargarh.

2. Brief facts of the cases, as per contents of the
FIR, are that petitioner dishonestly issued a cheque
bearing No.66790565 dated 28.01.2014 amounting to
Rs.700,000/- in favour of complainant which was
dishonoured on its presentation to the concerned
bank.

3. Learned counsel for the petitioner submits that
petitioner is innocent and he is falsely involved in the

instant case; that petitioner issued the disputed cheque to the complainant as a guarantee in business transaction; that FIR lodged after unexplained delay of 9 months; that offence does not fall within the ambit of prohibitory clause; that petitioner is behind the bar since his arrest; that petitioner is no more required to the Police for further investigation; that prosecution has badly failed to prove its case and also did not bring on record any material to connect the petitioner with the alleged offence and bail in such like cases is rule and refusal is an exception, as such, bail may kindly be allowed.

4. Learned DPG assisted by the learned counsel for the complainant/respondent No.2 submits that petitioner is nominated in the FIR; that cheque in question was also issued by the petitioner, as such, petitioner is not entitled for any discretionary relief from this Court.

5. Heard. Record perused.

6. The petitioner is behind the bar since 10.10.2014. There is unexplained delay of 9 months in lodging the FIR. The maximum sentence u/s 489-F

PPC is three years. Petitioner is no more required to the Police for the purpose of investigation. The case does not fall within the prohibitory clause of Section 497 Cr.P.C., in such like cases concession of granting bail must be favourably considered. Reliance is placed on the cases reported as Riaz Jafar Natiq Vs. Muhammad Nadeem Dar and Others (2011 SCMR 1708) and Abdul Sattar Vs. The State and Another (PLD 2013 Lahore 173).

7. Therefore, I accept this application and admit the petitioner to post-arrest bail subject to his furnishing bail bond in the sum of Rs.50,000/- with one surety in the like amount to the satisfaction of the learned trial Court.

(CH. MUHAMMAD IQBAL)
JUDGE

APPROVED FOR REPORTING

JUDGE

MFH (PA)